

Second, the arbitration agreement provides discretion to the arbitrator to impose on the employee all of the costs of arbitration.

Third, the court independently notes that the arbitration provision is unilateral, applying only to claims by an employee against the employer, and not bilateral, to include claims by the employer against the employee. This is further emphasized by the “reminder” paragraph that the Employer can still seek to enforce the agreement in court rather than the ability of **both parties** to seek injunctive relief in court despite the arbitration provisions.

Finally, the court notes that wage and hour, invasion of privacy, fraud and whistle-blowing claims not related to termination would not be subject to the arbitration provisions. The effect of enforcing the arbitration agreement as to only a subset of Plaintiff’s claims would be to stay the balance of Plaintiff’s claims pending completion of arbitration and to cause significant increase in the cost of litigation and delay. Again, this is another effect that benefits solely the Employer.

The employment agreement contains a severability clause. The court considered severance of these terms, but exercises its discretion to decline to sever the unconscionable terms to permit enforcement of enforce the balance of the arbitration agreement. (*Cook v. University of Southern California* (2024) 102 CalApp.5th 312.) The sole purpose of these terms was to unfairly discourage employees from exercising their rights to address workplace claims to the sole benefit of the employer.

Conclusion

The motion to compel arbitration is DENIED.

SHAYLA LEWELLEN v. CITY OF FAIRFIELD et al.
Case No. CU25-12033

CAP SOLANO’s Demurrer; SCTA’s Demurrer

TENTATIVE RULING

Counsel for moving parties shall appear. The moving papers fail to provide notice of the court’s tentative ruling system as required by Local Rule 3.9.

The demurrers by Defendants CAP SOLANO JPA (“CAP SOLANO”) and SOLANO COUNTY TRANSPORTATION AUTHORITY (“SCTA”) to Plaintiff’s complaint are both SUSTAINED WITHOUT LEAVE TO AMEND.

Each demurrer is not moot. On August 13, 2026, Plaintiff filed an opposition to a demurrer prior to the August 20, 2026 hearing on the demurrer brought by Defendants CITY OF FAIRFIELD (“FAIRFIELD”), CATHERINE MOY, DAVID GASSAWAY, and SAMANTHA BURROWS but did not specify to which of the pending demurrers the

opposition applied. Following judicial review, on August 13, 2026, a proposed amended complaint was rejected by the court at the direction of Department 8 on the basis that it was untimely and an opposition had been filed. On August 19, 2026, Plaintiff provided additional notice of opposition to a demurrer filed by “Defendants City of Fairfield, CAP Solano JPA, Catherine Moy, David Gassaway, Samantha Burrows and Solano Transportation Authority.”

Government Tort Claims Act. Under the Government Claims Act (a.k.a. the Tort Claims Act), claims for damages against public entities generally must be presented to the entity within six months of accrual of the injury. (*A.M. v. Ventura Unified School District* (2016) 3 Cal.App.5th 1252, 1257.) A written administrative claim for injury to the person, personal property, or crops must be presented within six months of the accrual of the cause of action. (Gov. Code § 911.2.) All other claims must be presented within one year. (*Ibid.*) Failure to timely file a claim that must be filed within six months can be excused with a written application to the public entity for leave to file late. (Gov. Code § 911.4.) Absent an applicable exception, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

Plaintiff’s complaint marks the box stating that she has complied with applicable claims statutes but the complaint lacks any factual allegations supporting that statement. It attaches a claim form showing she presented a claim to FAIRFIELD but there is nothing showing presentation to CAP SOLANO or SCTA which are separate legal public entities. The lack of stated facts showing compliance with claims presentation requirements is an independent ground to sustain the demurrers at hand.

Sufficiency of Pleading. Plaintiff’s complaint is ambiguous and unintelligible and largely nonsensical, which is an independent ground to sustain the demurrers at hand. (Code Civ. Proc., § 430.10(f).) It uses the Judicial Council form for claims based on contract but does not allege the formation or existence of any enforceable agreement between the parties. It employs common count cause of action forms but does not truly plead any express or implied promises to pay money; instead, Plaintiff seems to seek restitution of the value of misappropriated funds recovered by a state auditor as a result of Plaintiff’s “whistleblowing” or the alleged value of Plaintiff’s “Turnkey” idea. It distributes various conclusory allegations of wrongdoing, such as “fraud” and “land shaving” and “devaluation” of land, among various “attachments” interspersed through the complaint, without explaining what Plaintiff means by the use of those terms or how the conduct of the demurring defendants makes them liable to Plaintiff in a private civil cause of action. The complaint has almost no factual allegations concerning CAP SOLANO or SCTA at all, stating only that they were connected somehow to the ambiguously alleged “land shaving.” (Complaint at BC-4.)

Although uncertainty can usually be cured by amendment, Plaintiff has not met her burden of showing that it is reasonably possible for her to allege a valid cause of action against the demurring defendants. There is no civil cause of action for obstruction of justice. (*Agnew v. Parks* (1959) 172 Cal.App.2d 756, 766.) An essential element of

whistleblower retaliation is the existence of an employment relationship at the time of the allegedly retaliatory action, but there is no allegation that Plaintiff was ever an employee of CAP SOLANO or SCTA. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 287-288; *Bennett v. Rancho Cal. Water Dist.* (2019) 35 Cal.App.5th 908, 921.) Plaintiff appears unable to state a claim of fraud because Defendants CAP SOLANO and SCTA are absolutely immune from liability from any misrepresentations made by their employees (Gov. Code, § 818.8; *Masters v. San Bernardino County Employees Retirement Ass'n* (1995) 32 Cal.App.4th 30, 43) and Plaintiff did not allege the corruption or actual malice of any employee to have made any misrepresentation to overcome that employee's qualified immunity. (Gov. Code, § 822.2; *Masters*, 32 Cal.App.4th at 42).

While courts liberally grant leave to amend, it is improper to do so when a plaintiff cannot state a viable cause of action or show how she will amend the complaint to do so.

As the demurrers of CAP SOLANO JPA and SOLANO COUNTY TRANSPORTATION AUTHORITY are SUSTAINED WITHOUT LEAVE TO AMEND, the case is dismissed as to these defendants.

As the court has now sustained without leave to amend the demurrers of all named defendants, this case is DISMISSED WITH PREJUDICE. Any future dates, including Plaintiff's motion to compel scheduled October 1, 2026, motion for leave to amend the complaint scheduled December 3, 2026, and case management conference scheduled September 3, 2026, are vacated.

GRAVES v. KINDERCARE EDUC. LLC, ET AL.
Case No. CU26-00775

Petition to Compel Arbitration

TENTATIVE RULING:

Defendants' petition to compel arbitration is GRANTED.

Existence of Agreement to Arbitrate

A petitioner seeking to compel arbitration bears the burden of establishing the existence of a valid arbitration agreement and the respondent shoulders the burden of proving facts for nonenforcement. (*Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413; *Banner Entm't, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356.) Once a petitioner satisfies the burden of proving that an agreement to arbitrate exists, the opposing party has the burden of proving the facts of any defense to enforceability by a preponderance of the evidence. (*Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 972; *Vasquez v. Greene Motors, Inc.* (2013) 214 Cal.App.4th 1172, 1182.)